



Merivale – The Sackville Hotel

MN – 35033

Phase 1 Determination

Acquisition may be put into effect

25 August 2026

1. Determination and statement of reasons

Notified acquisition	Hemmes Trading Pty Limited and JH 7 Properties Pty Ltd, both part of the Merivale group of companies (Merivale Group), proposes to acquire the business assets and the freehold land of The Sackville Hotel from Amalgamated Hotels Pty Limited (Amalgamated Hotels) (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, Merivale Group, owns and operates around 90 hospitality venues across New South Wales and Victoria, which include pubs, restaurants, bars, and clubs. Merivale Group owns and operates the Three Weeds located at 197 Evans Street, Rozelle, New South Wales, which offers on-premises dining and liquor services. The target, The Sackville Hotel, operated by Amalgamated Hotels is a pub located at 599 Darling St, Rozelle, New South Wales. The Sackville Hotel offers on-premises dining and liquor services, gaming facilities, and a drive-through retail bottle shop.
Overlap and relationship between the Parties	The Sackville Hotel and Three Weeds are licensed hotels which supply on-premises hospitality products and services to consumers, including liquor for on-site consumption and dining in Rozelle, NSW, Sydney.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form and information from third parties. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings. Merivale Group will continue to face competition from a number of hotels and pubs in the local area surrounding the target venue.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to

	the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.
--	--

**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**